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8. INDEMNITY. You agree to defend, indemnify and hold harmless QTI and its affiliates, and their respective officers, directors, employees, contractors, agents, successors and assigns harmless from and against any and all claims, losses, damages, judgments, costs or debts, liabilities, fines, restitutions and expenses (including but not limited to attorneys’ fees and costs incident to establishing the right of indemnification) arising out of or related to Your use, misuse or operation of Licensed Materials to the fullest extent permitted by law.

9. TERM AND TERMINATION. This Agreement shall be effective upon acceptance by You and shall continue until terminated. You may terminate the Agreement at any time by deleting and destroying all copies of the Licensed Materials and related information in Your possession or control. This Agreement terminates immediately and automatically, with or without notice, if You fail to comply with any provision of this Agreement. Additionally, QTI may at any time terminate this Agreement, for any reason, with or without notice. Upon termination You must, to the extent possible, delete or destroy all copies of the Software, including Documentation, in Your possession and the licenses granted to You in this Agreement shall terminate. Your obligations which by their sense and context are intended to survive any termination or expiration of this Agreement shall so survive, including, without limitation, Your obligations under Section 3 (Intellectual Property Rights), Section 4 (Restrictions), Section 6 (No Warranty), Section 7 (Limitation of Liability), Section 8 (Indemnity), Section 10 (Export and Trade Controls Compliance) and Section 11 (U.S. Government Users (the “Government”)) of this Agreement. In the event that any restrictions, conditions, limitations are found to be either invalid or unenforceable, the rights granted to You in Section 1 (License Grant) shall be null, void and ineffective as of the date You selected the Accept Box, and QTI shall also have the right to terminate this Agreement immediately, and with retroactive effect to such acceptance date.

10. EXPORT AND TRADE CONTROLS COMPLIANCE. You acknowledge that the hardware, software, source code and technology, including, without limitation, the Licensed Materials (collectively, **“Items”**) obtained from QTI are subject to US export control and economic sanctions laws, orders, and regulations, including without limitation the *Export Administration Regulations* (**“EAR”**), 15 CFR Parts 730-774, and the *Foreign Assets Control Regulations*, 31 CFR Parts 500-599, as well as similar laws and regulations of other applicable jurisdictions (collectively, **“Export and Sanctions Laws”**). In connection with the performance of obligations under this Agreement, You assure that You and Your affiliates and agents (i) will comply with all Export and Sanctions Laws, including by obtaining any required US or other country licenses, authorizations, or approvals, and (ii) will not engage in any activity that would reasonably be expected to cause QTI to violate any Export and Sanctions Laws. You warrant that neither You, nor Your affiliates and agents, will directly or indirectly export, re-export, transfer or release (collectively, **“Export”**) any Items (whether or not incorporated into another item) or any direct product thereof, to any country or territory, its government, any entity located in or organized under the laws of such country or territory, or any individual located or resident in such country or territory, if, at the time of Export, the US government maintains comprehensive economic sanctions or an embargo with respect to such country or territory (**“Embargoed Country”**), without prior government authorization. The US government currently maintains comprehensive economic sanctions or an embargo against Cuba, Iran, North Korea, Syria, and the Crimea and so-called Donetsk People’s Republic and Luhansk People’s Republic regions of Ukraine. The list of Embargoed Countries may be amended over time. The US government also has imposed extensive export control and sanctions restrictions on, inter alia, Belarus, the Russian Federation, and Venezuela. You further agree not to directly or indirectly employ any Items in, or Export any Items for, end uses or end users that would violate the controls in Part 744 of the EAR, without prior US government authorization, including those related to prohibited missile or UAV technology; prohibited nuclear, chemical, or biological weapons activities; prohibited supercomputer and semiconductor manufacturing end uses; or for any prohibited military end use or end user. You warrant that neither You, nor Your affiliates or agents, are: (i) listed on a prohibited or restricted party list published by the US government, including but not limited to the U.S. Department of Treasury’s “List of Specially Designated Nationals and Blocked Persons” and “Consolidated Sanctions List”, and the US Department of Commerce’s Entity List, Unverified List, and Denied Persons List, or any similar list maintained by the United Kingdom, the European Union or its Member States, or other applicable local authority; (ii) located, organized or resident in an Embargoed Country; (iii) owned (50% or more) or controlled, directly or indirectly, by a person or entity described in clauses (i) or (ii); or (iv) otherwise the target of US sanctions (collectively, **“Restricted Persons”**). You shall not Export any Items to any Restricted Persons without prior US government authorization, to the extent required by regulation. If You are a person or entity located in Belarus, Cambodia, the People’s Republic of China, the Russian Federation,

Venezuela or Myanmar, You certify that You are not a "military end-user" as that term is defined in section 744.21 of the EAR. You acknowledge that the foregoing certifications are conditions to Your access to Items. This section shall survive the expiration or termination of this Agreement.

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12. GOVERNING LAW AND JURISDICTION. This Agreement is governed and interpreted in accordance with the laws of the State of California without giving effect to its conflict of laws provisions. The United Nations Convention on Contracts for the International Sale of Goods is expressly disclaimed and shall not apply. Any claim arising out of or related to this Agreement must be brought exclusively in a federal or state court located in San Diego County, California and You consent to the jurisdiction and venue of such courts.

13. ASSIGNMENT. QTI may assign, delegate or transfer its rights or obligations under this Agreement by any means or operation of law. You may not, without QTI's prior written consent, assign, delegate or transfer any of your rights or obligations under this Agreement by any means or operation of law, and any attempt to do so is null and void.

14. WAIVER. No failure or delay by a party to enforce any Agreement term or obligation will operate as a waiver by that party, nor prevent the enforcement of such term or obligation later.

15. SEVERABILITY. If any provision of this Agreement shall be unlawful, void or for any reason unenforceable, then that provision shall be deemed severable from this Agreement and shall not affect the validity and enforceability of any remaining provisions.

16. LANGUAGE. This Agreement is solely effective in its English language version and any translations of this Agreement are provided solely for information and convenience. In the event this Agreement is translated into any language other than English, the English version shall in all respects control and apply in case of any differences or discrepancies.

17. GENERAL. You agree to cooperate with QTI and provide reasonably requested information to verify Your compliance with this Agreement. This Agreement is the entire and exclusive agreement between QTI and You with respect to the Licensed Materials and supersedes all prior agreements (whether written or oral) and other communications between QTI and You with respect to the Licensed Materials. Any amendment to this Agreement must be in writing and signed by authorized representatives of both parties. In terms of the enforceability of this Agreement, the Agreement shall be deemed to be "in writing" and "accepted" by both parties. You will not contest the validity or enforceability of this Agreement solely because it was concluded electronically. For the avoidance of doubt, QTI and You acknowledge and agree that it is not a requirement to the effectiveness and enforceability of this Agreement that either party sign this Agreement.